

26TRCV00786 26TRCV00786

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Case Number: 26TRCV00786 Hearing Date: August 20, 2026 Dept: B

Moving Parties: Defendant Rahmat Hussain

Khan

Responding

Party: Plaintiff Sajda Hussain Khan

Demurrer to Complaint

The Court considered the moving, opposition, and reply papers.

RULING

The

demurrers to the first, second, third, and fourth causes of action in the complaint are SUSTAINED WITHOUT LEAVE TO AMEND.

The demurrer to the sixth cause of action is SUSTAINED WITH TWENTY DAYS LEAVE TO AMEND.

BACKGROUND

On March 4, 2026, plaintiff Sajda Hussain Khan filed a complaint against Rahmat Hussain Khan for (1) assault, (2) IIED, (3) Ralph Act, (4) violation of Cal. Const. Article 1, Section 3, (5) Bane Civil Rights Act, and (6) breach of contract.

LEGAL

AUTHORITY

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747. Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." *Gressley v. Williams* (1961) 193 Cal. App. 2d 636, 643-44.

DISCUSSION

Defendant

Rahmat Hussain Khan demurs to the first, second, third, fourth, and sixth causes of action in the complaint on the ground that they fail to state sufficient facts to constitute a cause of action.

The complaint alleges that the parties were involved in dissolution proceedings under LASC Case No. YD066662, wherein a status only judgment had been entered on July 28, 2016 restoring the parties to single status. Complaint, ¶5. Thereafter, in September 2018, plaintiff retained counsel to seek division of community property assets. *Id.*, ¶6. During the course of the proceedings and through various litigation tactics as well as Covid, the matter was delayed. On January 26, 2021, trial was eventually set for June 22, 2021 in the dissolution proceedings. *Id.*, ¶7. On May 3, 2021, defendant willfully, maliciously, and repeatedly followed and harassed plaintiff by making credible threats with the intent to place plaintiff in reasonable fear for her safety. In addition, defendant, with the intent to commit the crime of assault with a deadly weapon solicited another to offer, accept or join in the offer or acceptance of a bribe in the commission of committing the crime of assault with a deadly weapon by means of force likely to produce great bodily injury or death in order to prevent plaintiff from pursuing her rights in their pending dissolution proceedings at the time. *Id.*, ¶8.

The complaint further alleges that on November 15, 2021,

defendant was arrested and charged with committing crimes of Penal Code §646.9 (making criminal threats) and Penal Code §654f (solicitation of crime of assault with deadly weapon). Defendant remained in criminal custody during the course of his criminal proceedings until his plea. Id., ¶9. In June 15, 2022, defendant pled guilty and was sentenced to six years in state prison.

Defendant was given credit for days in custody and his scheduled release date was set for April 2024. Id., ¶10. Defendant was released in April 2024. Id., ¶11. Upon learning that he was released from criminal custody, plaintiff began to suffer from fear and anxiety that defendant would resume his effort to pursue her and kill her. Plaintiff lives in fear everyday of her life. Id., ¶12.

The complaint further alleges that on July 5, 2024, plaintiff filed a civil complaint for damages for assault, battery, IIED, Ralphs Act violations, California constitutional violations, and Bane Civil Rights Act violations, in case no. 24TRCV02255. Id., ¶13. After being served, defendant did not respond and default was entered on August 9, 2024. Thereafter, on November 13, 2024, plaintiff and defendant reached a settlement wherein defendant waived his right to claim his equalization payment previously ordered in the dissolution proceedings and plaintiff would dismiss her complaint, which plaintiff did on December 10, 2024. Id., ¶14. Plaintiff waited until July 2024 to file her initial complaint because she was pursuing other remedies, in that she believed defendant was going to be incarcerated for six years from the date of his conviction on July 15, 2022 since that was the sentence he received, her anxiety and fear did not manifest itself until he was released in April 2024 and she thereafter filed a complaint. Plaintiff has since waited until the present day to renew her complaint because she believed this matter was resolved per previous agreements. Id., ¶15.

First cause of action for assault

The Court finds that the cause of action is barred by the two-year statute of limitations under CCP §335.1. The complaint alleges that the assault occurred on May 3, 2021. The complaint was not filed until almost five years later.

Plaintiff has not alleged tolling nor delayed discovery. "In order to rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule

must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." Fox v. Ethicon

Endo-Surgery, Inc. (2005) 35 Cal. 4th 797, 808. "In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to show diligence; conclusory allegations will not withstand demurrer." Id.

Plaintiff has not alleged time and manner of discovery and the inability to have made earlier discovery despite reasonable diligence. She was aware and alleges the date she was assaulted.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Second

cause of action for IIED

The tort of intentional infliction of emotional distress

is comprised of three elements: (1)

extreme and outrageous conduct by the defendant with the intention of causing,

or reckless disregard of the probability of causing, emotional distress; (2)

the plaintiff suffered severe or extreme emotional distress; and (3) the

plaintiff's injuries were actually and proximately caused by the defendant's

outrageous conduct. McMahon v. Craig

(2009) 176 Cal. App. 4th 222, 234. "In

order to meet the first requirement of the tort, the alleged conduct . . . must

be so extreme as to exceed all bounds of that usually tolerated in a civilized

community." Id. at 234-35.

Whether conduct is sufficiently extreme and outrageous so as to be actionable

may be determined as a matter of law. Cochran

v. Cochran (1998) 65 Cal. App. 4th 488, 494. To avoid demurrer, the plaintiff must allege

such acts with great specificity. Yau

v. Santa Margarita Ford, Inc. (2014) 229 Cal. App. 4th 144, 160-61.

The

Court finds that the allegations are insufficient and have not been pled with

specificity. Plaintiff alleges that

defendant engaged in extreme and outrageous conduct but is ambiguous as to what

conduct she is referring. If it is

conduct that defendant assaulted her in May 2021, then the claim is barred by

the two-year statute of limitations and plaintiff has not alleged tolling or

delayed discovery. If it is conduct of defendant

being released from prison earlier than plaintiff expected, such conduct does not rise to the level of extreme and outrageous conduct and is conduct of the State.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Third

cause of action for Ralph Act

The

Court finds that the cause of action is barred by the three-year statute of limitations under CCP §338(n) (“[a]n action commencing under Section 51.7 of the Civil Code”). The complaint references conduct occurring on May 3, 2021, and the complaint was not filed until more than five years later.

Further,

the allegations are insufficient. To

establish a claim under the Ralph Act, a plaintiff must demonstrate that they

were subjected to violence or intimidation by threat of violence, and that the

conduct was motivated by their actual or perceived protected status. Civil Code §51.7. “Speech alone shall not support an action

brought pursuant to this section, except upon a showing of all of the

following: (A) The speech itself

threatens violence against a specific person or group of persons. (B) The person or group of persons against

whom the threat is directed reasonably fears that, because of the speech,

violence will be committed against them or their property. (C) The person threatening violence is acting

in reckless disregard for the threatening nature of their speech. (D) The person threatening violence has the

apparent ability to carry out the threat.”

Civil Code §51.7(e)(1). The

complaint does not allege “violence” or a “threat of violence” occurring within

the statute of limitations. Further,

plaintiff does not allege that defendant was motivated by plaintiff’s

“protected status.”

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Fourth

cause of action for violation of Cal. Const. Article 1, Section 3

The

Court finds that the allegations are sufficient. This section provides right to petition. It states, in part: "(a) The people have the right to instruct

their representatives, petition government for redress of grievances, and

assemble freely to consult for the common good." "There is no cause of action

for damages for alleged violations" of this section. Julian v. Mission Community Hospital

(2017) 11 Cal. App. 5th 360, 391.

The

demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Sixth

cause of action for breach of contract

The

complaint alleges that as to case no. 24TRCV02255, plaintiff gave defendant a written settlement agreement to execute.

Defendant informed plaintiff he would execute it after she filed her

request for dismissal. Plaintiff filed

her request for dismissal and dismissal (without prejudice) was entered on

December 10, 2024. Complaint, ¶35. Plaintiff has demanded that defendant provide

her with a signed copy of the written settlement agreement but defendant has

refused and instead has sought enforcement of the equalization payment owed to

him in case no. YD066662. Id., ¶36. Plaintiff has performed all conditions,

covenants, and promises required on her part to be performed in accordance with

the terms and conditions of their agreement.

Id., ¶37. Defendant now refuses

to acknowledge the parties' verbal and written agreements related to the

equalization payments owed in the dissolution proceedings and previous civil

complaint. Id., ¶38.

The

Court finds that the allegations are insufficient. "[T]he elements of a cause of action for breach

of contract are (1) the existence of the contract, (2) plaintiff's performance

or excuse for nonperformance, (3) defendant's breach, and (4) the resulting

damages to the plaintiff." Oasis West

Realty, LLC v. Goldman (2011) 51 Cal. 4th 811, 821 (citation omitted).

If a

breach of contract claim "is based on alleged breach of a written contract, the

terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” Harris v. Rudin, Richman & Appel (1999) 74 Cal. App. 4th 299, 307 (citation omitted).

Plaintiff

does not set forth the terms of the contract verbatim, or plead its legal effect, or attach a copy of the written contract. Plaintiff does not allege any express terms that defendant breached. Plaintiff does not allege whether the claim is founded upon a written contract, oral contract, or contract implied by conduct.

The

demurrer is SUSTAINED WITH LEAVE TO AMEND.

ORDER

The

demurrers to the first, second, third, and fourth causes of action in the complaint are SUSTAINED WITHOUT LEAVE TO AMEND.

The demurrer to the sixth cause of action is SUSTAINED WITH TWENTY DAYS LEAVE TO AMEND.

Defendant shall give notice of ruling.